

HOUSE No. 399

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Swansea to grant additional alcoholic beverage licenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/16/2025</i>
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>1/16/2025</i>

HOUSE No. 399

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 399) of Steven S. Howitt and Justin Thurber (by vote of the town) relative to authorizing the town of Swansea to grant additional alcoholic beverage licenses. Consumer Protection and Professional Licensure. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Swansea to grant additional alcoholic beverage licenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the numerical limitations for such licenses that are
2 imposed upon the Town of Swansea pursuant to Section 17 of Chapter 138 of the General Laws,
3 or by any other general or special law to the contrary, the Swansea licensing authority may grant
4 up to six additional licenses for the sale of all alcoholic beverages to be drunk on the premises
5 under Section 12 of said Chapter 138.

6 SECTION 2. The additional Section 12 licenses that are allowed pursuant to this Act may
7 be granted by the Swansea licensing authority only for the types of establishments that are
8 otherwise eligible for Section 12 licenses, and only for such establishments that are located on
9 the property known as and comprising the “Swansea Mall Redevelopment Area”; this property
10 being identified as the area located on the northerly and southerly parcels along Route 6 from the
11 westerly boundary of Gardner Neck Road to the westerly boundary of Milton Reiser Road, as
12 contained in the Town of Swansea Zoning Map, Business B District, and from Route 6 and

Route 118 in a northerly direction 3,900 feet +/- to the northerly most point of the Swansea Mall, so called, as contained in the Town of Swansea Zoning Map, Business B District.

SECTION 3. Any additional Section 12 license that is allowed pursuant to this Act and is granted hereunder by the Swansea licensing authority shall not be transferable to any other person, corporation, or organization for a period of five (5) years from the date of original issuance. Nor may any such license be transferred in violation of the limitations of Section 2 of this Act. Any transfer in violation of Sections 2 or 3 of this Act shall render said license null and void.

SECTION 4. Notwithstanding Sections 12 and 77 of Chapter 138 of the General Laws, the Swansea licensing authority may, in its sole discretion, restrict the grant of any additional Section 12 license that is allowed pursuant to this Act to holders of common victualler licenses.

SECTION 5. Whenever an additional Section 12 license that is allowed pursuant to this Act is granted hereunder by the Swansea licensing authority and subsequently revoked by said licensing authority or determined by said licensing authority to no longer be in use at the location of original issuance, then said license shall be returned physically, with all of the legal rights and privileges pertaining thereto, to said licensing authority.

SECTION 6. No additional Section 12 license that is allowed pursuant to this Act may be granted hereunder by the Swansea licensing authority unless the applicant files with said licensing authority letters from both the Department of Revenue and a letter from the Division of Unemployment Assistance indicating that the applicant is in good standing with those entities and that all applicable taxes, fees, and contributions have been paid.

34 SECTION 7. Except as otherwise provided in this Act, the additional Section 12 licenses
35 that are allowed hereunder shall be subject to all provisions, restrictions and requirements of said
36 Chapter 138.

37 SECTION 8. This Act shall take effect upon its passage.